

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DANIELA MENDEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, LT. COURTNEY NILAN,
P.O. NEIL CONDE, P.O. KEITH DOUMAS and
P.O. SHACOLE O'DELL,

Defendants.
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Index No.:
709299/2016

AMENDED VERIFIED
COMPLAINT

Plaintiff **DANIELA MENDEZ**, by her attorneys THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **DANIELA MENDEZ**
was, and still is, a resident of the County of Queens, City and
State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF
NEW YORK** was, and still is, a municipal corporation duly organized
and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned,
Defendants **LT. COURTNEY NILAN, P.O. NEIL CONDE, P.O. KEITH DOUMAS
and P.O. SHACOLE O'DELL** were and are Lieutenants and/or Police
Officers of the Defendant **THE CITY OF NEW YORK**, and at all times
herein were acting in such capacity as the agents, servants and
employees of the Defendant, **THE CITY OF NEW YORK**.

BACKGROUND FACTS

4. That on or about May 20, 2015 Plaintiff was a legal tenant who resided at 89-02 95th Avenue Apt. 3R Queens, NY.

5. On May 20, 2015 at approximately 1:50pm, the individual named Defendants rang the bell for Plaintiff's apartment located at the front door of the apartment building.

6. In response to the bell, Plaintiff left her 3rd floor apartment and proceeded down the stairs to the front door.

7. As Plaintiff reached the 2nd floor landing the individual named Defendants herein were climbing the stairs toward her.

8. Plaintiff's boyfriend was with the Defendants at this time and one or more of the Defendants told Plaintiff, while still on the second floor, that her boyfriend was being arrested and he wanted to give Plaintiff some of his personal belongings.

9. Instead of allowing Plaintiff to receive the personal belongings there on the second floor, the individual named Defendants continued up to the third floor and entered Plaintiff's apartment without permission.

10. The individual named Defendants then frisked and patted down Plaintiff without having permission or authority to do so.

11. Plaintiff protested being patted down and also protested Defendants entering her apartment.

12. Plaintiff told the Defendants that she was the lessee of the premises and that her boyfriend was not on the lease.

13. When Plaintiff attempted to enter her apartment Defendants prevented her from doing so, Defendants told Plaintiff that they were going to question her boyfriend and that Plaintiff could not be present.

14. Plaintiff was never allowed into her apartment while the Defendants were inside.

15. These Defendants were rude, condescending and uncooperative. They refused to answer any of Plaintiff's questions about what they were doing and why they were inside of her apartment.

16. As Defendants were leaving the premises one of the officers took a picture of Plaintiff's identification.

17. When Plaintiff re-entered her apartment she learned that Defendants lied to her about their activities within her apartment.

18. Plaintiff observed that the Defendants searched her apartment and ransacked her apartment as they searched.

19. Mattresses were flipped over and drawers had been emptied. Plaintiff's apartment was left in disarray.

20. Defendants never presented any warrant or any other authority granting them access to enter her apartment.

21. Plaintiff thereafter went to the NYPD 102nd Precinct to file a complaint against the Defendants who entered her apartment without permission.

22. Defendants refused to process Plaintiff's complaint despite their obligation to do so.

AS AND FOR A FIRST CAUSE OF ACTION

23. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, without any warrant or any other legal process and without any legal right, intentionally entered and remained in Plaintiffs' apartment.

25. Defendants did not have legal authority, consent or privilege to enter the property. Additionally, no nuisance or emergency existed allowing Defendants to enter the premises.

26. As a result of the Defendants unlawful intrusion Plaintiff has been damaged.

AS AND FOR A SECOND CAUSE OF ACTION

27. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "26" with full force and effect as though set forth at length herein.

28. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or

lieutenants, without any warrant or any other legal process and without any legal right, intentionally interfered with the property of the Plaintiff by ransacking her apartment during their unlawful search.

29. Defendants did not have legal authority, consent or privilege to interfere with the aforementioned property. Additionally, no nuisance or emergency existed that would justify the unlawful intrusion.

30. As a result of the Defendants' unlawful intrusion Plaintiffs was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

31. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "30" with full force and effect as though set forth at length herein.

32. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, subjected Plaintiff, **DANIELA MENDEZ** to an imminent fear of a harmful or offensive physical contact by approaching her as a group with the intention to physically pat her down and frisk her, while refusing to disclose their purpose in doing so.

33. All of the above actions placed the Plaintiffs in imminent fear of harmful and/or offensive physical contact without her consent.

34. Defendants did not have legal authority or privilege for their actions.

35. As a result of Defendants' unlawful conduct Plaintiff was damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

36. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "35" with full force and effect as though set forth at length herein.

37. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, did commit a battery upon Plaintiff **DANIELA MENDEZ** by subjecting her to a harmful and/or offensive physical contact by patting her down and frisking her within the common areas of her apartment building.

38. Defendants did not have legal authority to physically contact the Plaintiffs in the manner previously described.

39. Plaintiffs did not consent to the aforementioned contact nor was it privileged by law.

40. As a result of the Defendants unlawful conduct Plaintiffs were damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

41. Plaintiffs repeat, reiterate and re-allege all of the

allegations contained in paragraphs "1" through "40" with full force and effect as though set forth at length herein.

42. That the Defendants **LT. COURTNEY NILAN, P.O. NEIL CONDE, P.O. KEITH DOUMAS and P.O. SHACOLE O'DELL**, were at all times relevant, duly appointed and acting officers of the New York City Police Department.

43. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

44. Plaintiff **DANIELA MENDEZ** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

45. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, did place Plaintiff in imminent fear of physical contact by approaching her as a group with the intention of frisking and patting her down. All of the above actions placed the Plaintiffs in imminent fear of a harmful or offensive physical contact. Plaintiff did not consent to the unlawful actions of the Defendants, nor were they authorized by law.

46. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or

lieutenants, without any warrant, order or other legal process and without any legal right, subjected Plaintiff to a harmful and/or offense touching in that they frisked and patted her down. Plaintiff did not consent to this conduct nor was it authorized by law.

47. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, intentionally and unlawfully subjected Plaintiff to being searched and seized without authority or consent.

48. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, intentionally and unlawfully interfered with Plaintiffs' real and personal property by entering her apartment and destroying various property within all without consent, legal authority or privilege.

49. The above actions of the Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from warrantless search and seizure;
- d. Freedom from trespass to real property;

50. The Defendants subjected Plaintiff to such deprivations, either in a malicious manner, or with reckless

disregard of the Plaintiffs' rights, or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

51. As a direct and proximate result of the Defendants' acts Plaintiff has been damaged.

AS AND FOR SIXTH CAUSE OF ACTION

52. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "51" with full force and effect as though set forth at length herein.

53. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search warrant and that its police officers should only search an individual's residence with a lawfully issued search warrant.

54. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a warrant or other legal authority, said police officers of **THE CITY OF NEW YORK** are not to frisk and/or pat down individuals where probable cause or reasonable suspicion is lacking and furthermore are not to conduct searches of an individual's residence.

55. **THE CITY OF NEW YORK** is negligent due to its failure to

implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual residence can be searched by NYPD officers without lawfully issued search warrants.

56. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the Defendant police officers to assault, batter and trespass on the real and personal property of Plaintiff under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN SEVENTH CAUSE OF ACTION

57. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "56" as if set forth at length herein.

58. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the individual Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or search individual's homes and destroy their

personal property without a warrant. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

59. As a direct and proximate result of the Defendant's failures Plaintiff was damaged.

AS AND FOR A EIGHTH CAUSE OF ACTION

60. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "59" as if set forth at length herein.

61. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, owed Plaintiff **DANIELA MENDEZ** a duty to act reasonably in the performance of their duties and responsibilities.

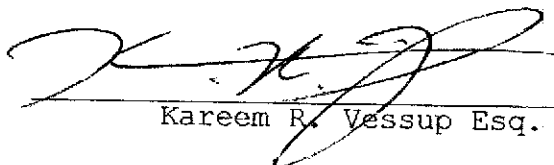
62. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, breached their duty owed to Plaintiff by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless, negligent and outside the bounds of the laws of New York and The United States

all in disregard of Plaintiff's rights as citizens of the United States and the State of New York.

63. That on May 20, 2015 at approximately 2:00pm at 89-02 95th Avenue Apt. 3R Queens, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or lieutenants, failed to conduct themselves consistent with the standards of the NYPD as stated in the NYPD Patrol Guide.

64. As a direct and proximate result of the Defendants conduct on May 20, 2015 Plaintiff was damaged.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.



Kareem R. Vessup Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DANIELA MENDEZ,

Index No.: 709299/16

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, LT. COURTNEY NILAN,
P.O. NEIL CONDE, P.O. KEITH DOUMAS and
P.O. SHACOLE O'DELL,

Defendants.
-----X

STATE OF NEW YORK)
) ss.
COUNTY OF QUEENS)

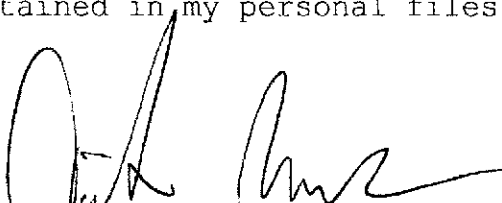
DANIELA MENDEZ, being duly sworn, says:

I am the Plaintiff in the action herein: I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
AUGUST 9, 2016



Daniela Mendez

Subscribed and sworn to before me
on this the 9th Day of August 2016



NOTARY PUBLIC

DAWNAE CHARISE BURWELL
Notary Public, State of New York
No. 01BU6331278
Qualified in Queens County
Commission Expires October 5, 2019